

[doc. web n. 9994597]
Provision of February 8, 2024
Register of provisions
n. 61 of February 8, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Deputy Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Ms. XX, an employee of the
Territorial Agency of the Puglia Region for waste management services (AGER – hereinafter,
the "Agency"), complained that "on
[date] XX [she was] notified via email from

sender protocol@pec.ager.puglia.it [...] to [her] institutional email account, the evaluation form for the year 2019” and that such outgoing note would have been recorded in the Agency’s protocol in a manner inadequate to ensure the confidentiality of the personal data contained therein, as it was “visible to all authorized users.”

The complainant also stated that she had “not [received] any indication and/or discussion [with the Data Protection Officer (DPO) designated by the Agency], regarding the methods of data processing at least concerning her sphere of activity,” knowing only the details of the appointment act to the same.

2. The investigative activity.

With note prot. n. XX of XX, reiterated with note prot.

n. XX of XX, the Authority made a request for information to the Agency pursuant to Article 157 of the Code.

With note prot. n. XX of XX, the Agency provided feedback to the aforementioned request, stating, in particular, that:

“due to a mere material error, the evaluation form was not recorded confidentially, but was accessible to all persons authorized to access the protocol”;

“AGER is a newly established entity, created by LR number 20 of 2016 with the appointment of a commissioner ad acta in office until September 2018. In the start-up phase of the entity, [...] the first identified employees arrived in February 2019, through mobility, and AGER faced the start of institutional activities with personnel on subordinate contracts or consultancy. To ensure the functioning of the structure, collaborators ([...] and the same [complainant]) also accessed the protocol, but there was no reason for other users to access the file, and as can be verified from the system logs [...] only the persons involved in the procedure (the operator who sent it, and the same [complainant]) accessed the file, and therefore no one else became aware of the content of the protocol in question”;

“subsequent to the event, only four persons [...] from the protocol office were authorized to access the system. Starting from 2021, the units were reduced to three [...]”;

“the system adopts high levels of security, as it is accessible only from a specific IP address, and any communication regarding personnel, by checking the ‘confidential’ box, automatically becomes inaccessible unless in possession of the password”;

“each time a confidential protocol is generated, to access it or to send it, it is necessary to generate a unique password

that is useful only to open the recorded file [...]";

"[...] no protocol operator is able to acquire or generate [the] aforementioned password [, as it is necessary to request] support from the IT office of the general management, which, based on the request received via email from the protocol office, proceeds, following the verification of the General Director, to generate the access password to the protocol to allow for its possible sending";

"[The appointment of the [DPO was made with] DD. n. XX of XX [regarding] 'XX [...]' and [with] DD. n. XX of XX [for the renewal of the appointment]";

"The contact details [of the DPO] were published on XX, with the simultaneous publication of the new website";

"Due to a clerical error, the communication of the [DPO] to the Authority was not made, and this was rectified on XX with note prot. n. XX."

With note of XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Agency, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures under Article 58, paragraph 2, of the Regulation, for:

- the failure to designate the DPO during the period between May 25, 2018, the date on which the Regulation became effective, and XX, the date on which the DPO was designated, in violation of Article 37, paragraph 1, letter a), of the Regulation;
- the failure to inform regarding the contact details of the DPO, in violation of Articles 13, paragraph 1, letter b), and 37, paragraph 7, of the Regulation;
- the failure to communicate to the Authority the contact details of the DPO, in violation of Article 37, paragraph 7, of the Regulation.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With note of XX (prot. n. XX), the Agency submitted a defensive memorandum, stating, in particular, that:

- "the entity[,] initiated after the first commissioner phase in 2018[,] could not count on any unit of dependent personnel, [as] activities were carried out relying on professional relationships";
- "only from February 2019 were two positions covered with two units of personnel coming from voluntary mobility procedures";
- "[only in] October 2019 with subsequent Decrees 90/91/92/93/94/95 did the Agency proceed to announce public selection procedures for titles and interviews for the coverage of 10 fixed-term positions";
- "the procedures initiated were then suspended due to the COVID-19 emergency. Only on XX were these procedures finalized and allowed the entity to have its own personnel (albeit largely on fixed-term contracts) totaling 6 units (including those acquired through mobility procedures)";
- "therefore, it should be emphasized that this period should be considered as a true start-up of the entity, which was in fact lacking for a long time a stable and organic organizational structure, aggravated by all the critical issues that the concurrent health emergency entailed";
- "there has been no unauthorized access to the personal data subject to this procedure [..., as emerges from the] access 'logs' produced in the records";
- "[...] the employee concerned did not in any way indicate the circumstance of the failure to affix the 'confidential' protocol instead of the 'ordinary' one, thus allowing colleagues to inhibit access to the document";
- "[...] the failure to affix the 'confidential' protocol instead of the 'ordinary' one is attributable to a mere oversight by the protocol operator."

During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX (see verbatim prot. n. XX of XX), the Agency stated, in particular, that:

- "the Entity has experienced a very complex period in establishing an internal organizational structure; following its establishment in 2018, only in 2019 did the first two units arrive through mobility procedures. In the same year, collaborators arrived, and only in 2020 were the first fixed-term contracts signed";
- "this process of internal organization was further complicated by the SARS-CoV-2 pandemic";
- "the failure to designate the DPO and the untimely publication and communication of his contact details was not due to the will of the Entity, which, in the early period of its history, had to face an emergency situation and a scarcity of resources";
- "until XX, the Agency used the website of the Puglia Region, which did not allow for the insertion of specific information regarding the Entity; subsequently, once it became autonomous, the Agency was able to publish online all the information required by law";
- "the Agency has published the contact details [of the] DPO on its institutional website and has modified all its information on data processing, including those intended for workers, indicating the contact details of the DPO";
- "in any case, employees had already been informed of the appointment of the DPO and his contact details."

3. Outcome of the investigative activity.

3.1 Accessibility to personal data contained in an evaluation form.

The complainant alleged that unauthorized individuals had access to their evaluation form for the year 2019.

In this regard, the Agency, assuming responsibility also pursuant to Article 168 of the Code, stated – producing evidence extracted from its IT systems (log files) – that, although this evaluation form had been..."

documentazione presentata dall'Agenzia non ha dimostrato l'adempimento degli obblighi previsti dal Regolamento, si conclude che la sanzione amministrativa pecuniaria deve essere applicata nella misura massima prevista.

5. Dispositivo.

Per quanto sopra esposto, si dispone:

- a) di confermare l'illiceità del trattamento di dati personali effettuato dall'Agenzia per le violazioni riscontrate;
- b) di applicare una sanzione amministrativa pecuniaria all'Agenzia, quantificata in euro 20.000.000, per le violazioni degli artt. 13, par. 1, lett. b), e 37, par. 1, lett. a), e 7 del Regolamento;
- c) di ordinare all'Agenzia di adottare, entro un termine di 30 giorni dalla notifica del presente provvedimento, le misure necessarie per conformarsi alle disposizioni del Regolamento, in particolare per quanto riguarda la designazione del RPD, la comunicazione dei dati di contatto e l'informativa agli interessati.

Il presente provvedimento è notificato all'Agenzia e pubblicato sul sito web dell'Autorità.

of the dispute within the specified term, to pay the full amount of the administrative fine imposed, as well as any additional penalties that may arise from the failure to comply with this order.

6. Final provisions

The present order shall be published in its entirety on the website of the Garante, in accordance with Article 166, paragraph 7 of the Code, and shall take effect from the date of publication.

7. Appeal

The Agency has the right to appeal this decision before the competent judicial authority, in accordance with the provisions of Article 18 of the Regulation n. 1/2019, within the term established by law.

8. Notification

This order shall be notified to the Agency at its legal headquarters and shall be communicated to the relevant authorities for the necessary actions.

Thus, the Garante concludes this decision, ensuring compliance with the applicable regulations and the protection of personal data rights.

of the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €6,000 (six thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

ORDERS

pursuant to Article 166, paragraph 7, of the Code, the publication of this provision on the website of the Authority, considering that the conditions set forth in Article 17 of the Regulation of the Authority No. 1/2019 are met.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, February 8, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi